

Pappu v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 3 December 2010 · WRIT - C No. 49896 of 2009 (with Civil Misc. Restoration Application No. 296 of 2011) · **By order dated 06.11.2009 the Division Bench, prima facie, held illegal the amendment of the recovery certificate to realise the whole dues from Pappu (the beneficiary), since under Section 126 recovery lies against both the consumer (Jeeshan, respondent no. 5) and the beneficiary; the interim stay of recovery against Pappu (order dated 14.10.2009) was continued, notice issued to Jeeshan, and the licensee left free to recover half the dues from Jeeshan. The writ petition was ultimately dismissed for want of prosecution on 03.12.2010, and the restoration application dismissed for want of prosecution on 05.10.2012.**

Source file: WRIC(A)_49896_2009.pdf

HEADNOTE

In an order-sheet writ arising from a theft-of-electricity recovery, the connection stood in the name of Jeeshan (respondent no. 5), whose supply (7.5 HP sanctioned load) had been disconnected in 2005 for non-payment; Jeeshan orally sublet it to the petitioner Pappu, who was caught drawing electricity unauthorisedly by making cuts on the overhead wires and running a 50 HP motor to manufacture plastic granules. After the High Court, in Jeeshan's earlier writ (WP No. 7074 of 2009, decided 09.02.2009), had permitted his objection to the assessment to be decided only on his depositing 50% of the amount under citation, the Executive Engineer instead, by order dated 30.06.2009, amended the recovery certificate to realise the entire dues from Pappu. The Division Bench held, prima facie, that (i) under Section 126 of the Electricity Act, 2003 the assessed dues for unauthorised use are recoverable from the beneficiary of the unauthorised use as well as from the registered consumer, so both Jeeshan and Pappu were liable; (ii) there is no provision in the Electricity Act, 2003 or the U.P. Electricity Supply Code, 2005 to amend the recovery certificate so as to realise the same amount from the beneficiary alone, shifting the consumer's liability, especially after the court had conditioned the consumer's representation on a 50% deposit; and (iii) the Executive Engineer had illegally allowed Jeeshan's representation, which was not required to be decided until he deposited 50% of the dues. Recovery against Pappu was stayed, notice was issued to Jeeshan, and the licensee was left free to recover half the dues from Jeeshan. The writ was later dismissed for want of prosecution (03.12.2010), and the restoration application dismissed for want of prosecution (05.10.2012).

FACTUAL SUMMARY

The writ petition (WRIT-C No. 49896 of 2009) was filed by Pappu against the State of U.P., the Paschimanchal Vidyut Vitran Nigam Ltd. and its officers. The electricity connection in question stood in the name of Jeeshan (also spelt Zeeshan), son of Ikram (respondent no. 5), with a sanctioned load of 7.5 HP; it was disconnected in 2005 for failure to pay the electricity bills. Jeeshan entered into an oral agreement with Pappu, under which Pappu was to continue depositing the bills and to use the electricity at the premises of one Shahbuddin; Pappu was caught stealing electricity, running a 50 HP motor to manufacture plastic granules by making cuts on the overhead wires leading to the premises. Earlier, Jeeshan's own writ (Civil Misc. Writ Petition No. 7074 of 2009, once recorded in the order-sheet as 'of 2001') had been disposed of on 09.02.2009 with a direction that, on depositing 50% of the amount under citation within one month, he could file an objection/representation to be decided after full hearing. Without serving that order and without depositing the 50%, Jeeshan filed an affidavit before the Executive Engineer admitting the connection was his; and the Executive Engineer (M.P. Singh, Electricity Distribution Division-I, Saharanpur), purportedly acting on a representation of Pappu's mother, Smt. Sahjadi, to the Commissioner of the Division, by order dated 30.06.2009 amended the recovery certificate to shift the electricity dues so as to be recovered from Pappu, giving rise to this petition. A police investigation report annexed by supplementary affidavit stated that no one named Pappu lived in the locality and that the entire story had been set up by officers of the electricity department; the department proposed to file a protest petition against that report. The matter was heard by a Division Bench (Sunil Ambwani and Virendra Singh, JJ.) across several dates in 2009; recovery against Pappu was stayed on 14.10.2009 and that position was maintained by the order of 06.11.2009. The writ petition was finally dismissed for want of prosecution on 03.12.2010, and a subsequent restoration application (No. 296 of 2011) was dismissed for want of prosecution on 05.10.2012.

REUSABLE CONSTRUCTIONS

1. Under Section 126 of the Electricity Act, 2003, the assessed dues for unauthorised use of electricity are recoverable from the beneficiary of the unauthorised use as well as from the registered consumer; both are liable to pay the dues. *order of 08.10.2009; order of 06.11.2009*

2. There is no provision in the Electricity Act, 2003 or the U.P. Electricity Supply Code, 2005 empowering the authority to amend a recovery certificate/citation so as to realise the whole assessed amount from the beneficiary alone, thereby relieving the registered consumer of liability. **order of 08.10.2009**
3. Where the writ court permits a consumer's objection/representation against an assessment to be decided only upon deposit of a specified percentage of the amount, the assessing authority cannot decide that representation before the deposit is made; deciding it in defiance of the condition is illegal. **order of 06.11.2009**

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

OBITER

Assessed dues for unauthorised use are recoverable from the beneficiary as well as the consumer

QUESTION

From whom may the assessed dues for unauthorised use/theft of electricity be recovered - only the registered consumer, or also the beneficiary of the unauthorised use?

HOLDING

From both. Under Section 126 of the Electricity Act, 2003 recovery can be made from the consumer as well as the beneficiary of the unauthorised use of electricity. Even where the petitioner (Pappu) was only the beneficiary of electricity illegally drawn from another's connection (Jeeshan's, respondent no. 5), both the consumer and the beneficiary would be liable to pay the dues. This was a prima facie view expressed at the interim stage. **order of 08.10.2009; order of 06.11.2009**

EVIDENCE *"Under Section 126 of the Electricity Act the recovery can be made from the consumer as well as the beneficiary of the unauthorised use of electricity."* **order of 06.11.2009**

EVIDENCE *"In a case of theft of electricity even if the petitioner was found to be the beneficiary of illegally drawing electricity from some other connection, both the respondent no. 5 and petitioner would be liable to pay the dues."* **order of 08.10.2009**

FLAG Order-sheet across 16.09.2009-05.10.2012 with no printed page numbers and no numbered paragraphs; pins reference the order dates. The statements are prima facie observations at the interim stage - the writ was later dismissed for want of prosecution.

INTERPLAY · EA2003::126

OBITER

A recovery certificate cannot be amended to shift the entire liability onto the beneficiary, relieving the consumer

QUESTION

Is there any power under the Electricity Act, 2003 or the U.P. Electricity Supply Code, 2005 to amend a recovery certificate so as to realise the entire assessed amount from the beneficiary alone, shifting the registered consumer's liability?

HOLDING

No. There is no provision in the Electricity Act, 2003 or the U.P. Electricity Supply Code, 2005 to amend the recovery certificate and realise the same amount from a person who was merely the beneficiary of the theft, especially after the High Court had directed that the consumer's representation be decided only on his depositing 50% of the amount. Since the liability lay on both, the licensee could recover half the dues from Jeeshan (respondent no. 5), and the amendment of the certificate to recover the whole from Pappu was illegal. **order of 08.10.2009; order of 06.11.2009**

EVIDENCE *"There is no provision in the Indian Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 to amend the recovery certificate and realise the same amount from a person, who was the beneficiary of the theft specially after this Court had directed his representation to be decided on deposit of 50% of the amount."* **order of 08.10.2009**

EVIDENCE *"It will be open to the respondents to recover half the amount both in terms of the provisions of the Indian Electricity Act as well as directions of the Court from Jeeshan- respondent no.5."* **order of 06.11.2009**

HOLDING-UNIT · EA2003::126

OBITER

Assessing authority cannot decide the consumer's representation without the court-directed 50% deposit

QUESTION

Could the assessing authority decide the consumer's (Jeeshan's) objection/representation against the assessment without his depositing 50% of the amount, as the High Court had earlier directed?

HOLDING

No. The consumer's representation was not required to be decided until he had deposited 50% of the dues, as directed by the High Court on 09.02.2009; by deciding it without that deposit and directing the entire recovery from the beneficiary, the respondents had illegally allowed the representation, and the consumer was additionally found guilty of concealing the court's order. This too was a prima facie view at the interim stage. [order of 06.11.2009](#)

EVIDENCE “His representation was not required to be decided until he had deposited 50% of the dues.” [order of 06.11.2009](#)

EVIDENCE “the respondents illegally allowed his representation and directed the entire recovery to be made from Pappu” [order of 06.11.2009](#)

PRINCIPLE TAGS

s126-dues-recoverable-from-beneficiary-as-well-as-consumer The connection stood in Jeeshan's name but Pappu was the beneficiary who drew electricity unauthorisedly; the Court held that under Section 126 both the consumer and the beneficiary are liable to pay the assessed dues. [order of 08.10.2009](#); [order of 06.11.2009](#)

no-power-to-amend-recovery-certificate-to-shift-liability-to-beneficiary The Executive Engineer's amendment of the recovery certificate to realise the entire dues from the beneficiary alone was held to have no statutory basis in either the Act or the Code; recovery lay against both, half being recoverable from the consumer. [order of 08.10.2009](#); [order of 06.11.2009](#)

representation-not-decidable-without-court-ordered-deposit The consumer's representation, which the High Court had permitted to be decided only on a 50% deposit, could not be entertained before the deposit; deciding it and shifting recovery to the beneficiary was illegal. [order of 06.11.2009](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE MERITS OF THE WRIT PETITION (WHETHER THE RECOVERY AGAINST PAPPU WAS ULTIMATELY SUSTAINABLE)

Never finally adjudicated; the writ petition was dismissed for want of prosecution on 03.12.2010 and the restoration application dismissed for want of prosecution on 05.10.2012, so the prima facie observations were not converted into a final decision. [order of 03.12.2010](#); [order of 05.10.2012](#)

NOT DECIDED — WHETHER 'PAPPU' EXISTED / WAS CORRECTLY IDENTIFIED AS THE WRONGDOER, GIVEN THE POLICE REPORT

A police investigation report stated that no one named Pappu lived in the locality and that the story had been set up by officers of the electricity department; the department proposed a protest petition, and this disputed question of fact was left unresolved. [order of 14.10.2009](#)

RELATED CASES — SEE ALSO

SCJ-2716 — Vikram Singh (2021) - a recovery citation on theft-of-electricity allegations is a civil assessment under Clause 8.1(a) r/w Section 126, addressing the same recovery-citation machinery for theft/unauthorised use.

SCJ-111 — Sandeep Kesarwani (2014) - Section 126 assessment applies even where the same conduct also constitutes theft under Section 135, confirming Section 126 as the assessment/recovery vehicle relied on here.

SCJ-2628 — Chaman Prakash (2021) - a Section 135 theft FIR does not dispense with the Code's assessment/hearing safeguards before recovery, cognate to the procedural infirmity in the amendment of the certificate here.

SCJ-124 — Smt. Beena Dubey (2017) - co-extensive liability of a non-consumer (landlord) for a connection's dues under Clause 4.3(f)(vi), analogous to the beneficiary's joint liability recognised here.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Zeeshan (Jeeshan) v. State of U.P. (Civil Misc. Writ Petition No. 7074 of 2009)</i> High Court of Judicature at Allahabad	Jeeshan's earlier writ, disposed of on 09.02.2009, permitting his objection/representation against the assessment to be decided only on his depositing 50% of the amount under citation within one month (the order-	Referred to and treated as the condition the assessing authority defied; the Court found Jeeshan guilty of concealing this order and held that his representation was not	Court	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
	sheet records the number once as 'of 2001' and elsewhere as 'of 2009').	to be decided until the 50% deposit was made. order of 06.11.2009		

SCJ-2851 · Pappu v. State of U.P. & Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.